



File No.: EXP202305365

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against the MINISTRY OF HEALTH - COMMUNITY OF MADRID (hereinafter, the respondent) without their request receiving the legally established response.

On October 28, 2022, the complainant received a call from SUMMA-112 by the Director and the Deputy Director of Nursing. Upon answering, they indicated that the call would be recorded. Once the conversation ended, the complainant requested access to the recording through the internal application for making requests (incidents). This request was closed on the same day, indicating that they needed to contact the labor relations department to request it.

The complainant contacted the labor relations department, and that department indicated that they would provide the recording, but that the request had to be submitted through official channels, specifying the purpose and who would listen to it because there were two other people involved who needed to know for what purposes the recording was wanted.

On November 21, 2022, the complainant exercised the right of access before the respondent, attaching to the aforementioned request the incidents previously submitted in order to obtain the recording of the conversation.

According to the complainant, the aforementioned request has not been addressed.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on June 2, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days.

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The respondent, during the argument period, demonstrated having addressed the right by sending the transcription of the call recording.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any arguments they consider appropriate, summarizing the following allegations:

“HAVING RECEIVED THE TELEPHONIC TRANSCRIPTION PROVIDED BY SUMMA 112, I REFER TO MAKE THE RELEVANT ALLEGATIONS ABOUT IT.

THE RECEIVED TRANSCRIPTION IS MANIPULATED AND ALSO PARTS OF THE CONVERSATION ARE MISSING, WHICH ARE THE ONES I NEED TO CARRY OUT THE NECESSARY PROCEDURES. THEREFORE, I REQUEST THAT A DIGITAL COPY OF SAID CONVERSATION BE PROVIDED TO ME, OFFERING ANY SUPPORT THEY MAY NEED.”

FIFTH: The allegations presented by the complainant are sent to the respondent for clarification of what was stated by the complainant.

On October 5, 2023, the respondent sent a response regarding this matter, stating that they could demonstrate that the provided telephone transcription is complete.

Namely.

"...To this effect, the requested report from the responsible party, SUMMA 112, signed by its Managing Director, as the highest authority of the entity, has been received, corroborating that the transcription provided to the complainant adhered to the complete content of the recording available. Thus, the referred report states:

"The transcription of the telephone recording of the conversation held between Ms. A.A.A. and the Nursing Sub-Directorate of SUMMA 112 on 10/28/2022 at approximately 1:00 PM and lasting 18 minutes and 20 seconds adheres entirely to the content of said recording."

The indicated report is attached as Annex 1, with its content reproduced. Likewise, this Delegation anticipates that, if deemed necessary, and in accordance with its investigative powers as a Control Authority, the recording of the call is available, preserving it from the complainant, in order to protect the fundamental rights of the other participants in the same..."

SIXTH: On November 6, 2023, this Agency requested the respondent for the recording of the call to carry out the necessary verifications.

As of the date of resolution of this complaint, such recordings have not been received.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 2, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the

opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the data subject's rights under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation of...

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whether or not personal data concerning them is being processed and, in such case, the right of access to personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to

obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency and addressed the request made by the complainant, sending the required response to their request.

However, the complainant stated in their allegations that the access was incomplete since parts were missing from the transcription sent of the telephone recording.

This circumstance was communicated to the entity being complained about for clarification of this assertion, and the entity responded by stating that what was sent is complete and that, if necessary, the original recording is available to the supervisory authority.

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In light of this dilemma, the Agency should have a copy of the voice recording of what was sent by the respondent to the claimant in order to make a decision regarding whether the right has been fulfilled or not. Therefore, considering that the burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party (in this case, the recording or its transcription) falls on the responsible party, and without having received the original recording of the call, it is appropriate to uphold the claim.

In any case, it will be the data controller who, in the specific case, determines the method to respond to the right of access, whether, for example, by sending a copy of it, or by other access modalities such as listening to the recording on their premises, if they consider and justify in this latter case that the method of access by means of a copy contravenes what is established in section 4 of Article 15 of the GDPR, in accordance with what is established in the body of this resolution.

Having reviewed the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A., considering that the provisions of Article 15 of the GDPR have been infringed and to urge the MINISTRY OF HEALTH-COMMUNITY OF MADRID, to provide the claimant with access to the requested recording within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to the MINISTRY OF HEALTH-COMMUNITY OF MADRID.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015 of October 1, on Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may

optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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